



# Data Privacy Notice and Consent Policy

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|---------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Policy no:                | 5.2                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| Version date              | August 2026                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| Approved by               | Board of Governors                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| Policy group              | Information and Governance                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| Version number            | V1                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| Next review due           | August 2027                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| External reference points | <p><b>Statutory</b><br/>           UK GDPR &amp; Data Protection Act, May 2018<br/>           Information Commissioners Office (ICO) <a href="#">Guidance</a><br/>           ICO Data Protection helpline 0303 123 1113 &amp; 01625 545 745<br/>           Privacy and Electronic Communications Regulations (PECR), 2003 enforced by the ICO.</p> <p><b>UK Quality Code for Higher Education Principle 4</b><br/>           Adhering to ethical and data protection requirements including gathering and submitting data for national data sets, regulatory purposes, and internal monitoring and evaluation.</p> |

| Version Control  |             |             |                                                                                                                                                           |
|------------------|-------------|-------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|
| Previous Version | New Version | Date        | Update/Notes                                                                                                                                              |
| V1 April 2025    | V2          | August 2026 | Significant changes to update the policy in line with TEC's academic management and governance structure and policy formatting and structure house style. |

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## 1. Introduction

This policy notifies and informs people about their rights when Trent Education Centre (TEC) collects personal information about them. It should be read alongside the TEC Data Protection Policy and Data Retention Policy, which give more information about how TEC handles people's data and meets its legal obligations.

TEC is registered with the Information Commissioner's Office (ICO), which is the UK regulator for data protection and privacy. Registration details are as follows:

- **Registration reference:** Z3126380
- **Date registered:** 02 April 2012
- **Registration expires:** 01 April 2027
- **Payment tier:** Tier 1
- **Data Controller:** Trent Education Centre Ltd
- **Data Protection Lead (DPL)** IT Manager  
[it-support@trenteducation.ac.uk](mailto:it-support@trenteducation.ac.uk)
- **Oversight of UK Data Protection and GDPR**  
Head of Partnerships and Compliance [raana@trenteducation.ac.uk](mailto:raana@trenteducation.ac.uk)

TEC has applied but is not yet registered with the UK higher education regulator, the Office for Students (OfS). This policy helps TEC meet OfS expectations, especially Condition E2, which requires good governance and full compliance with data protection law, including the Data Protection Act 2018 and UK GDPR.

## 2. Purpose and Scope

The purpose of this policy is to explain what personal information is collected about people by TEC, how it is used, and who it is shared with. For more details about the types of data collected, see the section below on **Data Collected**. This policy also explains how TEC protect people's privacy, what consent it needs to share data, and how people can refuse or withdraw consent.

The people TEC collects personal information about are called "data subjects." This includes applicants, students, staff, independent board and committee members, and anyone else who gives TEC their personal data. For more details, see the section below on **Data Subjects**. This policy is for all TEC's data subjects, but especially applicants and students. It covers applicants and students in all TEC's further education, English language, and higher education courses.

### 3. Aims and Objectives

This policy aims to inform people about the lawful basis for handling their personal data. It also aims to assure people about their privacy rights and how they can give or refuse consent for TEC to handle their data. Our objectives are to ensure TEC's data subjects, especially applicants and students, understand the following:

- Their privacy rights in relation to their personal data
- What types of personal information is collected
- Why TEC collects personal information
- How TEC uses personal information
- How long TEC keeps personal information
- When TEC needs consent to handle personal information
- How people give or refuse to give consent for TEC to handle their personal information
- When TEC may be required to share personal information with others

### 4. Reasons for Collecting Data

TEC has to collect certain personal data in order to deliver its services legally and in compliance with regulators. TEC needs to register students with awarding bodies or organisations so they can study and receive their qualifications. When registered with the Office for Students, TEC will need to send data on students to the Higher Education Statistics Agency (HESA). If TEC delivers courses in partnership with another organisation, the personal data of students will need to be shared with the partner when required for the course. See the section below on **Data Collected** for more details on the type of data TEC needs to collect and it is collected.

### 5. Data Protection Lead

The TEC IT Manager is the Data Protection Lead (DPL). Data subjects can contact the DPL at [it-support@trenteducation.ac.uk](mailto:it-support@trenteducation.ac.uk) if you have any questions about your personal data, including requests to access the data TEC holds about you. See the Data Protection Policy for more information on the DPL and on Subject Access Requests if you wish to have access to the personal data TEC holds about you.

### 6. Right to Privacy

TEC will always protect people's right to privacy when collecting their data. TEC will be clear about why certain data is collected (see Data Collected below) and how it is used. TEC will only use personal data for the purpose it was collected unless the law allows the data to be used for another purpose or TEC has consent to do so. TEC will never sell personal data and will only share it when there is a lawful reason to do so. In some cases, TEC may be required to share personal data even without consent. For example, TEC may need to share personal data to prevent or detect fraud or other crimes or types of harm, or to collect a debt.

## **7. Giving Consent at Enrolment**

When an applicant provides their personal information during enrolment, TEC uses this information under our lawful bases in UK GDPR<sup>1</sup>. This allows TEC to process the data needed for enrolment, teaching, funding (if relevant), and regulatory requirements. TEC may also need to share data with a partner or awarding organisation when required for your course. If TEC asks for consent for an optional purpose such as marketing TEC courses or sharing your data with a sponsor who has paid your fees, you will be given a clear explanation and opportunity to refuse or withdraw your consent at any time.

## **8. Sharing Data without Consent**

TEC may need to share certain types of personal data with other organisations even without consent from the data subject. In these cases, TEC will only share the minimum amount of data required and only when there is a lawful reason to do so. Examples of organisations or professionals TEC may need to share data with include:

- Debt collectors, if legally justified
- The Police, for the prevention or detection of crime or to protect someone from harm
- The Student Loans Company (SLC), when required for funding or attendance checks
- HESA, if TEC becomes registered with the Office for Students
- Safeguarding or Prevent Duty services, if someone is at risk of harm
- Awarding bodies or organisations, when required for your course

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<sup>1</sup> Lawful bases include contract, legal obligation, vital interests and public task

## 9. Data Subjects

TEC collects, processes and retains data on 'data subjects' from one of the 12 groups in Table 1.

**Table 1 Data Subjects**

| <b>Data subjects</b>                   | <b>Role or status</b>                                                                                                                                                                                                                          |
|----------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>(1) Applicants</b>                  | Applying to join a course at TEC                                                                                                                                                                                                               |
| <b>(2) Students</b>                    | Enrolled onto a course at TEC                                                                                                                                                                                                                  |
| <b>(3) Former Students</b>             |                                                                                                                                                                                                                                                |
| (a) Graduates and Alumni               | Completed a course at TEC successfully                                                                                                                                                                                                         |
| (b) Deferred Students                  | Deferred their studies either before or after starting                                                                                                                                                                                         |
| (c) Withdrawn Students                 | Started a course at TEC but withdrew or were withdrawn without successfully completing the course                                                                                                                                              |
| <b>(4) Staff</b>                       | Full-time (FT), part-time (PT), permanent, temporary or freelance.                                                                                                                                                                             |
| <b>(5) Board and Committee Members</b> | Executive or independent members of the boards and committees in TEC's governance structure including the Senior Management Team, Academic Board, Audit and Risk Committee, Remuneration and Nominations Committee and the Board of Governors. |
| <b>(6) External Bodies</b>             |                                                                                                                                                                                                                                                |
| (a) Partner organisations              | Any organisation in a collaborative partnership with TEC.                                                                                                                                                                                      |
| (b) Awarding organisations or bodies   | Providing TEC with recognised awards to deliver such as Pearson BTEC HND in Business, ATHE L5 Extended Diploma in Business and Management, NCFE Functional Skills L1 & L2 and Ascentis ESOL Entry 1 to Level 2.                                |
| (c) Accreditation bodies               | Conduct periodic inspections at TEC and provide TEC with an accreditation such as ASIC for all provision and the British Council for English language provision.                                                                               |
| <b>(7) Visitors</b>                    | Guest speakers and members of the public entering TEC premises for any reason such as to attend meetings, interviews, special events, conferences, open days or other activities.                                                              |
| <b>(8) Contractors</b>                 | People working on TEC premises such as maintenance staff, IT engineers, cleaners, security contractors and building engineers.                                                                                                                 |

Details of the data TEC collects on each of these data subjects can be found in the section below under **Data Collected**. Further details on the length of time TEC retains all the data it collects on its data subjects can be found in the Data Retention Policy.

## 10.Data Collected

The following table gives details of the types of data TEC collects on different data subjects and the reasons we collect this data. TEC may not collect all of this data for every individual and there may be other data types that need to be collected. TEC is likely to ask for some or all of the data listed for each type of data subject.

**Table 2 Applicants**

| <b>(1) Applying to join a course at TEC</b>                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                   |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Data collected</b>                                                                                                                                                                                                                                               | <b>Reason</b>                                                                                                                                                                                                                                                                                                                                     |
| Personal details including names, contact details (phone and email), date of birth, passport with nationality, visa, share code and right-to-study if relevant, proof of address, next of kin, previous qualifications or prior learning including work experience. | These details are required in order to assess if students are eligible to enrol on a course. They may be required by a partner organisation or awarding body/organisation before a student can enrol into a course. They may be required to ensure that an applicant is genuine and not using a false identity (See the Fraud Management Policy). |
| In some cases, we collect evidence of employment and income.                                                                                                                                                                                                        | To assess equivalent experience for mature applicants (21+) where work history is used to meet entry requirements.                                                                                                                                                                                                                                |
| Special category data such as protected characteristics under the Equality Act 2010 <sup>2</sup> , special educational needs or disability (SEND), criminal convictions where relevant to the programme.                                                            | For safeguarding purposes, including identifying applicants who may be under 18, vulnerable adults, applicants with support needs, needs (See the Reasonable Adjustments and Special Considerations Policy). This information ensures that appropriate support, risk management and fitness-to-study checks can be carried out.                   |
| TEC may check digital identifiers such as IP addresses and device information                                                                                                                                                                                       | For fraud prevention, system security and audit trails.                                                                                                                                                                                                                                                                                           |
| Information relating to admissions complaints or appeals.                                                                                                                                                                                                           | To maintain accurate records for regulatory compliance, quality assurance, and to support any subsequent investigation, safeguarding concern, legal process, or dispute resolution involving TEC or its stakeholders.                                                                                                                             |

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<sup>2</sup> Age, disability, gender reassignment, marriage or civil partnership, pregnancy and maternity, race, religion or belief, sex, sexual orientation

**Table 3 Students**

| <b>(2) Enrolled onto a course at TEC</b>                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                     |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Data collected</b>                                                                                                                                                                                                                                               | <b>Reason</b>                                                                                                                                                                                                                                                                                                                                                       |
| Personal details including names, contact details (phone and email), date of birth, passport with nationality, visa, share code and right-to-study if relevant, proof of address, next of kin, previous qualifications or prior learning including work experience. | These details are required to maintain an accurate student record, verify identity, comply with immigration and right-to-study requirements, support academic administration, and ensure students can be registered with awarding bodies/organisations.                                                                                                             |
| Protected characteristics, special educational needs or disability (SEND), criminal conviction where relevant to the programme.                                                                                                                                     | For safeguarding purposes, including identifying vulnerable adults, students with support needs (See the Reasonable Adjustments and Special Considerations Policy). This information ensures that appropriate support, risk management and fitness-to-study checks can be carried out.                                                                              |
| Student performance metrics and learning analytics such as attendance records, assignment submissions, grades and feedback records, information on engagement                                                                                                       | To comply with the TEC Quality Assurance Framework (QAF), complete Course Quality Reviews (CQRs) and the Annual Academic Monitoring Review (AAMR) and improvement plan, and to monitor student progression, continuation, and attainment in line with regulatory and awarding-body expectations. Such data may also be shared with partners and student sponsors.   |
| Records of student work including coursework, video recorded presentations and other orally delivered assessments.                                                                                                                                                  | To provide evidence of academic achievement, support internal verification/moderation and external examination, and meet regulatory and awarding-body/organisation requirements for assessments and quality assurance. Video recordings are used solely for assessment purposes, and students are informed at enrolment that some oral assessments may be recorded. |
| Data required by awarding bodies or organisations                                                                                                                                                                                                                   | Required for registration, assessment, certification, external quality assurance, and verification of academic progress.                                                                                                                                                                                                                                            |
| Data required by OfS, HESA and the Student Loan Company (SLC) if TEC has OfS registration.                                                                                                                                                                          | Required for statutory reporting, funding, regulatory compliance, monitoring, and submission of mandatory student data returns.                                                                                                                                                                                                                                     |
| Information relating to any disciplinary proceedings, conduct issues, complaints or appeals and academic appeals                                                                                                                                                    | To maintain accurate records for regulatory compliance, quality assurance, and to support any subsequent investigation, safeguarding concern, legal process, or dispute resolution involving TEC or its stakeholders.                                                                                                                                               |



**Table 4 Former Students**

| <ul style="list-style-type: none"> <li>- Completed a course at TEC successfully</li> <li>- Deferred Students</li> <li>- Withdrawn Students</li> </ul> |                                                                                                                                                                                                                       |
|-------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Data collected                                                                                                                                        | Reason                                                                                                                                                                                                                |
| Personal details including names, contact details (phone and email), date of birth, nationality, and proof of address.                                | Required to maintain an accurate alumni record, verify identity for award confirmation, and enable ongoing communication such as issuing transcripts, certificates, references, or updates about TEC's activities.    |
| Details of qualifications awarded with grades, transcripts, and completion status (graduates and alumni only).                                        | Required to confirm academic achievement, provide verification to employers or other institutions, support quality assurance, and meet awarding-body/organisation requirements.                                       |
| Academic records relating to modules attempted, grades achieved, continuation, completion and progression status (withdrawn and deferred students).   | Required to maintain accurate historic academic records, provide reports in compliance with regulations, and evidence for any future enquiries or requests for evidence to verify status.                             |
| Protected characteristics, SEND information, criminal-conviction declarations (only where previously collected during their study).                   | Retained only where necessary for statutory reporting, regulatory compliance, or to respond to post-completion safeguarding or legal enquiries. Not routinely used for alumni engagement.                             |
| Data required by awarding bodies/organisations.                                                                                                       | Required to maintain award records, enable verification of qualifications, support external quality assurance, and meet contractual or regulatory obligations with awarding bodies.                                   |
| Data required by OfS, HESA and SLC (only relevant if TEC has OfS registration).                                                                       | Required for statutory reporting, longitudinal outcomes monitoring, regulatory compliance, and submission of mandatory graduate-outcomes data returns.                                                                |
| Information relating to any disciplinary proceedings, conduct issues, complaints, appeals and academic appeals during their studies.                  | To maintain accurate records for regulatory compliance, quality assurance, and to support any subsequent investigation, safeguarding concern, legal process, or dispute resolution involving TEC or its stakeholders. |

**Table 5 Staff**

| <b>(4) FT, PT, Permanent, Temporary and Freelance</b>                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                         |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Data collected</b>                                                                                                                                                                                                                      | <b>Reason</b>                                                                                                                                                                                                                                                                                                                                           |
| Personal details including names, contact details (phone and email), date of birth, passport with nationality, visa, share code and right-to-work if relevant, proof of address, next of kin, previous qualifications and work experience. | To ensure fair and safe recruitment of appropriately qualified and experienced staff (see the Safer Staff Recruitment Policy). This information is also required to maintain accurate HR records, verify identity, comply with immigration and right-to-work requirements, administer contracts and payroll, and ensure the safety of all stakeholders. |
| Employment status (full-time, part-time, permanent, temporary, fixed-term, freelance), contractual documentation, job role, start and end dates, and working hours.                                                                        | Required to fulfil employment obligations, manage payroll and HR processes, ensure compliance with statutory and regulatory requirements, and maintain accurate employment records for internal and external reporting and quality assurance (especially operational effectiveness).                                                                    |
| Protected characteristics and health-related information including any disability.                                                                                                                                                         | To ensure inclusive recruitment practices without discrimination, comply with the Equality Act 2010, support monitoring of equality, and arrange reasonable adjustments for staff with disabilities. See the Equality Diversity and Inclusion Policy and the Reasonable Adjustments and Special Considerations Policy.                                  |
| In some cases, a DBS may be required as well as evidence of any criminal convictions.                                                                                                                                                      | To verify that staff are suitable to work in regulated activities involving vulnerable adults or children and young people if relevant (currently TEC does not provide any services involving children or young people), and to ensure that no individual at TEC is placed at risk.                                                                     |
| A minimum of two references from previous employers or academic references.                                                                                                                                                                | Required to verify employment history, confirm suitability for the role, support safer recruitment, and reduce the risk of fraudulent applications. See the Fraud Management Policy.                                                                                                                                                                    |
| Salary and bank details, contract of employment, staff appraisal details for all staff and lesson observation details for tutors.                                                                                                          | For HR administration, payroll, performance management, quality assurance, and to ensure staff are supported, monitored and remunerated appropriately in line with remuneration policies.                                                                                                                                                               |
| Performance management records, appraisal documentation, teaching evaluation data (where applicable), CPD and training completion records and mandatory training compliance.                                                               | To comply with the TEC Quality Assurance Framework (QAF), complete the Annual Operational Review (AOR) and improvement plan. To fulfil employment obligations, monitor and support staff professional development and ensure compliance with regulatory and accreditation requirements.                                                                 |
| Working time records including hours worked and opt-out declarations for the 48-hour limit.                                                                                                                                                | To comply with the Working Time Regulations 1998 and ensure safe working practices.                                                                                                                                                                                                                                                                     |
| Absence and sickness records required for statutory sick pay administration.                                                                                                                                                               | To comply with statutory sick pay obligations and maintain accurate HR and payroll records.                                                                                                                                                                                                                                                             |
| Health and safety incident records including accidents, injuries and hazardous near-misses.                                                                                                                                                | To comply with health and safety legislation and maintain statutory reporting records.                                                                                                                                                                                                                                                                  |
| Pension scheme enrolment and contribution details.                                                                                                                                                                                         | For payroll administration and compliance with statutory pension auto-enrolment duties.                                                                                                                                                                                                                                                                 |

|                                                                                                                                                 |                                                                                                                                                                                                                                  |
|-------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Data required by external bodies such as the OfS, other regulators, accreditation bodies, a partner organisation or awarding body/organisation. | To meet due diligence, regulatory, statutory and contractual compliance requirements and to satisfy the quality-assurance expectations of external bodies.                                                                       |
| Information relating to any disciplinary proceedings including records of any hearings, conduct issues, complaints, appeals and grievances.     | To maintain accurate employment records for regulatory compliance, quality assurance, and to support any subsequent investigation, safeguarding concern, legal process, or dispute resolution involving TEC or its stakeholders. |

**Table 6 Board and Committee Members**

| <b>(5) Executives and Independent Members</b>                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                        |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Data collected</b>                                                                                                                                                                                                            | <b>Reason</b>                                                                                                                                                                                                                                                                          |
| CVs and personal information including passport and proof of address.                                                                                                                                                            | To verify identity, confirm that individuals are suitably qualified and experienced for their governance role, and ensure contact details are accurate and up to date.                                                                                                                 |
| Declarations of interest with all details of any business, family or close friend relationship that may present a conflict-of-interest risk arising.                                                                             | To ensure that all decisions taken by TEC's Boards and committees are free from undue influence and comply with the OfS Public Interest Governance Principles. See the Conflict-of-Interest Policy and the Governance and Academic Management Framework (GAMF).                        |
| Fit and proper person forms completed with full disclosure of any other directorships or trusteeships, previous bankruptcies, convictions or participation in failed applications for registration with the Office for Students. | To ensure that members of the Board of Governors, Audit and Risk Committee, and Remuneration and Nominations Committee are suitable, trustworthy, and able to provide transparent and independent oversight in the best interests of TEC and its stakeholders, including its students. |

**Table 7 External Bodies**

| <ul style="list-style-type: none"> <li>- <b>Partner organisations (e.g. BAJ)</b></li> <li>- <b>Awarding organisations/bodies (e.g. Pearson, ATHE, NCFE and Ascentis)</b></li> <li>- <b>Accreditation bodies (e.g. ASIC and British Council)</b></li> </ul> |                                                                                                                                                                                                         |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Data collected</b>                                                                                                                                                                                                                                      | <b>Reason</b>                                                                                                                                                                                           |
| Organisation name, registered address, contact details of key personnel, contractual documentation where relevant.                                                                                                                                         | To establish and manage relationships, fulfil contractual obligations, ensure regulatory compliance, conduct quality assurance.                                                                         |
| Due-diligence information, performance data, quality-assurance documentation, and any information required to meet regulatory obligations of the OfS, HESA or awarding body/organisations.                                                                 | To verify suitability and legitimacy of partner organisations, maintain regulatory compliance and meet the requirements of awarding bodies/organisations and support audit trails for oversight bodies. |
| Financial information such as bank details and invoicing information.                                                                                                                                                                                      | For invoicing, payment and financial reconciliation.                                                                                                                                                    |

**Table 8 Visitors**

| <b>(7) Guest speakers and members of the public entering TEC premises for any reason such as to attend meetings, interviews, special events, conferences, open days or other activities.</b> |                                                                                                                                                         |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Data collected</b>                                                                                                                                                                        | <b>Reason</b>                                                                                                                                           |
| Name, contact details, organisation (if applicable), purpose of visit, visit logs, sign-in records, access-control data.                                                                     | To manage site access, maintain accurate visitor records, ensure safety and security, and comply with safeguarding and health & safety requirements.    |
| For any visiting speaker, a completed External Speaker Approval Form in the Appendix of their Academic Freedom Policy, with their CV, passport ID and proof of address.                      | To ensure any visiting speaker is suitable, competent, briefed on TEC's Safeguarding and Prevent Policy and has read the TEC Academic Freedom Policy.   |
| CCTV images and audio (where applicable), vehicle registration details (if using TEC parking facilities).                                                                                    | For crime prevention, safeguarding, site security, and to support emergency or incident investigations. See the Contingency and Adverse Effects Policy. |
| Emergency contact information (for events or activities where required).                                                                                                                     | To ensure appropriate emergency response and support health & safety obligations.                                                                       |

**Table 9 Contractors**

| <b>(8) People working on TEC premises such as maintenance staff, IT engineers, cleaners, security contractors, building contractors.</b> |                                                                                                                                              |
|------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Data collected</b>                                                                                                                    | <b>Reason</b>                                                                                                                                |
| Name, contact details, organisation, identification documents (if required for site access), contractor credentials.                     | To verify identity and suitability, manage access to TEC premises, and ensure compliance with safeguarding and health & safety requirements. |
| Professional qualifications, DBS status (where required), insurance certificates, health & safety compliance documentation.              | To ensure contractors meet regulatory, safeguarding, and health & safety obligations before undertaking work on TEC premises.                |
| Access-control logs, sign-in records, CCTV images.                                                                                       | For site security, safeguarding, crime prevention, and maintaining accurate audit trails.                                                    |

## 11. Individual Rights

The ICO publishes [Guidance](#) on the individual rights that all data subjects have according to UK GDPR and the Data Protection Act 2018. These rights include:

- Right to be informed
- Right of access
- Right to rectification
- Right to erasure
- Right to restrict processing
- Right to data portability
- Right to object
- Rights related to automated decision-making including profiling

Table 11 shows how TEC ensures that all these rights are upheld at TEC.

**Table 10 Individual Rights to Privacy Information**

| Individual rights      | How they are upheld at TEC                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Example                                                                                                                                                                                                                                                                                                                            |
|------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Right to be informed   | The TEC Data Privacy Notice and Consent Policy sets out how TEC provides clear and accessible privacy information in accordance with UK GDPR and ICO guidance, using techniques such as layering and just-in-time notices to ensure individuals understand how their personal data is collected, used, shared and protected and for how long.                                                                                                                                                                                                                                                                                      | TEC's student application form includes a general statement on how TEC uses the personal data we collect on individuals and their rights in relation to this data. A link is provided below this statement to the Privacy Notice and Consent Policy for more details.                                                              |
| Right of access        | TEC commits to providing all data subjects with a copy of the personal information held on them including any supplementary information unless an exemption applies. Unless an exemption applies such as a criminal investigation is underway, TEC will confirm the following to individuals upon request: <ul style="list-style-type: none"> <li>- what personal information TEC holds on them</li> <li>- why it holds the information</li> <li>- how long it will hold this information</li> <li>- whom it will share the information with</li> </ul>                                                                            | A student emails the Data Protection Lead asking for a copy of all the personal data TEC holds about them, including their attendance records and the information used to register them with the awarding body. TEC checks the student's identity and then provides the information within one month, unless an exemption applies. |
| Right to rectification | TEC encourages individuals to provide accurate and complete person data whenever they have a change in circumstances such as a change of address. Individuals may send a request to the DPO asking for any information TEC holds on them to be corrected if inaccurate or completed if incomplete. TEC aims to respond within 72 hours and will always respond within one month in accordance with UK GDPR, either to confirm that the information has been corrected or completed or to deny that it needs to be corrected or completed unless an exemption <sup>3</sup> applies, in which case TEC may neither confirm nor deny. | A student notices that TEC has an old address on their record and emails the DPL asking for it to be updated. TEC corrects the address within the required timeframe and confirms the change.                                                                                                                                      |

<sup>3</sup> An exemption may apply if providing information risks interfering with a criminal investigation.

|                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Right to erasure             | TEC commits to erasing personal data that it no longer needs. Individuals may request erasure of personal data if their data is no longer required for the purpose that it was originally collected. They may also request erasure of data that TEC was only able to collect with their consent.                                                                                                                                                                                                                                                                                | A student who provided a testimonial for TEC to share publicly on its website may at any time remove their consent and ask TEC to erase the testimonial.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| Right to restrict processing | <p>TEC will not collect, structure, share or erase personal data if a request to restrict processing is submitted by the data subject unless it the processing of their personal data is needed for any of the following reasons:</p> <ul style="list-style-type: none"> <li>- To defend against a legal claim</li> <li>- To protect the rights of another person</li> <li>- To uphold the public interest</li> </ul> <p>TEC will inform other relevant organisations if any data is being restricted. The DPO will maintain a log of all data under restricted processing.</p> | A student has been sanctioned for academic misconduct by the TEC Academic Misconduct Panel (AMP), and their mark has been capped at a Pass. All appeals should to be submitted to the Academic Misconduct Review Panel (AMRP) within 14 days but the student appeals after one month citing mitigating circumstances. At the same time, the student requests that TEC restricts processing the decision of the AMP and the student's grade until the AMRP has reviewed the case. The AMRP agrees to review the case and the data in relation to the student's capped grade is placed on hold. This information is shared with the DPO who maintains a Data Log which includes samples of all restricted personal data. TEC may also report this to the awarding organisation depending upon their regulations. The restriction is temporary and applies only to the specific data under review. |
| Right to data portability    | Any personal data TEC has received from individuals will be made available to them or other organisations if required in a standard and widely used format that computers can read and can be imported by other organisations.                                                                                                                                                                                                                                                                                                                                                  | A student requests a copy of the personal data they provided during application and enrolment, including their contact details, identity documents, and qualification history. TEC provides this information in a CSV file so the student can give it to another education provider.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

|                                                                 |                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|-----------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Right to object                                                 | Data subjects may object to any of their personal information being used for direct marketing or research purposes and TEC will either suppress their details and anonymise the data or remove it completely. If the research has already been conducted or is in the public interest the individual may not have the right to object.        | A tutor obtained consent and collected data from students for a pedagogical research study. After the analysis was completed, one student objected to further use of their identifiable data. The DPO reviewed the request and confirmed with the tutor that the student's data had already been anonymised during analysis, meaning it could no longer be linked back to them. The tutor therefore could not remove the anonymised data from the completed research, but the DPO stopped any further use of the student's identifiable data and recorded the objection in the Data Log. |
| Rights related to automated decision-making including profiling | TEC will not ordinarily rely on automated processing of decisions relating to legal or other consequential matters that are derived solely from analysis of personal data by machines, such as artificial intelligence. TEC will only do this if consent is given by the data subject or there is a legal or regulatory requirement to do so. | The HR Manager uses an AI tool to help review CVs by highlighting skills and experience that match the job criteria. The interview panel then considers the AI output alongside their own assessment of each candidate during in-person interviews. The final hiring decision is made by the panel, ensuring that no decision is based solely on automated processing.                                                                                                                                                                                                                   |

If an individual (data subject) wishes to request anything in relation to these rights, they may contact one of the following:

- The staff member who collects and retains the data,
- Data Protection Officer [it-support@trenteducation.ac.uk](mailto:it-support@trenteducation.ac.uk)
- Head of Partnerships and Compliance [raana@trenteducation.ac.uk](mailto:raana@trenteducation.ac.uk).

Alternatively, individuals may submit a request in relation to their personal data using the Data Request Form provided in the Appendix and available online.

## **12.Safe Storage of Data**

TEC will store all data safely and securely. Hard-copy data will be stored in our Head Office in Nottingham in a locked drawer and a locked room. Digital data will be stored on secure servers, password protected, backed up, and accessible only to authorised staff.

TEC stores personal data on secure cloud systems that comply with UK GDPR and have approved safeguards for any international transfers. TEC will only keep personal data for as long as needed for legal, regulatory, or operational reasons. For full details, please see the TEC Data Retention Policy.

TEC also conducts due diligence on any organisation it forms a partnership with to make sure they store and protect data safely.

All access to personal data is restricted. Only staff who need data for appropriate reasons have access. All staff are trained about Data Protection including the need for privacy and confidentiality.

### **12.1. Non-UK Data Transfer**

If TEC needs to transfer personal data to another country, it will only do this when the law allows. This means TEC will make sure that the country has an approved level of data protection (called an “adequacy decision”) or that strong safeguards are in place, such as approved contracts or encryption.

If TEC works with a partner organisation or awarding body outside the UK, it will check that they meet UK GDPR requirements before any data is shared. TEC will always protect your personal data and will only transfer it outside the UK when it is safe and lawful to do so.

### **12.2. CCTV**

TEC may use CCTV on its premises for safety, security and crime-prevention purposes. CCTV may record images and, in some cases, audio. CCTV helps us protect students, staff, visitors and contractors, and supports investigations into incidents, accidents or safeguarding concerns.

CCTV footage is stored securely, accessed only by authorised staff, and kept for a limited period in line with the TEC Data Retention Policy. TEC may share CCTV footage with the Police or other authorised bodies if required for crime prevention, safeguarding, legal reasons or to protect someone from harm. CCTV is not used for monitoring the performance or behaviour of staff or students unless required for an investigation.

Clear signs are displayed on TEC premises to inform people if CCTV is in operation.

## **13.Data Breaches**

TEC will investigate and take immediate action if there is any breach of confidentiality, integrity or availability of personal data. Any breaches are identified are shared with the Information Commissioner’s Office (ICO) within 72 hours. See the Data Protection Policy for more information on how TEC deals with data breaches.



## Appendix 1 Disclosure Consent Form (Students)

If you wish to give consent to Trent Education Centre (TEC) to share your data with a third party, please complete the form below and email it to the DPL [it-support@trenteducation.ac.uk](mailto:it-support@trenteducation.ac.uk)  
For use by applicants, students.

|                                                                                                                                                                                                                                                                                                                      |                          |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| <b>Your personal details</b>                                                                                                                                                                                                                                                                                         |                          |
| Full name                                                                                                                                                                                                                                                                                                            |                          |
| Date of birth                                                                                                                                                                                                                                                                                                        |                          |
| Student ID if applicable                                                                                                                                                                                                                                                                                             |                          |
| Address                                                                                                                                                                                                                                                                                                              |                          |
| Email                                                                                                                                                                                                                                                                                                                |                          |
| Phone                                                                                                                                                                                                                                                                                                                |                          |
| Who do you give TEC permission to share your data with (Name the individual or organisation)                                                                                                                                                                                                                         |                          |
| <b>What personal data do you give TEC permission to share - Tick all that apply</b>                                                                                                                                                                                                                                  |                          |
| Identity information (name, date of birth)                                                                                                                                                                                                                                                                           | <input type="checkbox"/> |
| Contact details (email, phone number)                                                                                                                                                                                                                                                                                | <input type="checkbox"/> |
| Attendance information                                                                                                                                                                                                                                                                                               | <input type="checkbox"/> |
| Academic progress or results                                                                                                                                                                                                                                                                                         | <input type="checkbox"/> |
| Financial information (fees, payments)                                                                                                                                                                                                                                                                               | <input type="checkbox"/> |
| Other (please specify):                                                                                                                                                                                                                                                                                              | <input type="checkbox"/> |
| <b>Why do you want TEC to share this data?</b>                                                                                                                                                                                                                                                                       |                          |
| <b>How long do you permit TEC to share this data?</b>                                                                                                                                                                                                                                                                |                          |
| Once only                                                                                                                                                                                                                                                                                                            | <input type="checkbox"/> |
| Until my course ends                                                                                                                                                                                                                                                                                                 | <input type="checkbox"/> |
| Other                                                                                                                                                                                                                                                                                                                | <input type="checkbox"/> |
| <b>You must show proof of ID to the DPL or their nominee, such as your Passport or Driving Licence before data can be released.</b>                                                                                                                                                                                  |                          |
| <b>Declaration</b>                                                                                                                                                                                                                                                                                                   |                          |
| I understand that I am giving TEC permission to share my personal data as stated in this form I know that I can withdraw consent at any time by emailing <a href="mailto:it-support@trenteducation.ac.uk">it-support@trenteducation.ac.uk</a> . I understand that TEC will only share the data required and no more. |                          |
| <b>Signature</b>                                                                                                                                                                                                                                                                                                     |                          |
| <b>Date</b>                                                                                                                                                                                                                                                                                                          |                          |

## Appendix 2 Subject Access Request Form (SARF)

If you wish to request access to the personal data that TEC holds about you, please complete the form below and email it to the Data Protection Lead: [it-support@trenteducation.ac.uk](mailto:it-support@trenteducation.ac.uk)  
*For use by applicants, students, staff, alumni, contractors, visitors, and any other TEC data subjects.*

|                                                                                                                                      |                          |                          |                                                          |
|--------------------------------------------------------------------------------------------------------------------------------------|--------------------------|--------------------------|----------------------------------------------------------|
| <b>Your personal details</b>                                                                                                         |                          |                          |                                                          |
| Full name                                                                                                                            |                          |                          |                                                          |
| Date of birth                                                                                                                        |                          |                          |                                                          |
| Student ID if applicable                                                                                                             |                          |                          |                                                          |
| Address                                                                                                                              |                          |                          |                                                          |
| Email                                                                                                                                |                          |                          |                                                          |
| Phone                                                                                                                                |                          |                          |                                                          |
| <b>Tick all that apply</b>                                                                                                           |                          |                          |                                                          |
| Access to all personal data TEC holds about me                                                                                       |                          |                          | <input type="checkbox"/>                                 |
| Explanation of automated decision-making involving my data                                                                           |                          |                          | <input type="checkbox"/>                                 |
| Review of payment/financial records                                                                                                  |                          |                          | <input type="checkbox"/>                                 |
| Confirmation of attendance or enrolment                                                                                              |                          |                          | <input type="checkbox"/>                                 |
| Access to special category data under UK GDPR Article 9: SEND, health, mental health, safeguarding, Prevent (please specify)         |                          |                          | <input type="checkbox"/>                                 |
| Access to any other specific personal data (please specify):                                                                         |                          |                          | <input type="checkbox"/>                                 |
| <b>Preferred format for your data</b>                                                                                                |                          |                          |                                                          |
| PDF                                                                                                                                  |                          |                          | <input type="checkbox"/>                                 |
| CVS                                                                                                                                  |                          |                          | <input type="checkbox"/>                                 |
| Excel                                                                                                                                |                          |                          | <input type="checkbox"/>                                 |
| Word                                                                                                                                 |                          |                          |                                                          |
| Printed hard copy                                                                                                                    |                          |                          | <input type="checkbox"/>                                 |
| <b>Do you wish TEC to send your data to another organisation</b>                                                                     | <b>YES</b>               | <input type="checkbox"/> | <b>NO</b> <input type="checkbox"/>                       |
| <b>If yes, provide the details of the organisation</b>                                                                               |                          |                          |                                                          |
| Name of the organisation                                                                                                             |                          |                          |                                                          |
| Contact/Email                                                                                                                        |                          |                          |                                                          |
| <b>You must show proof of ID to the DPL or their nominee, such as your Passport or Driving Licence before data can be released.</b>  |                          |                          |                                                          |
| <b>Declaration</b>                                                                                                                   |                          |                          |                                                          |
| I confirm that the information provided in this form is accurate and that I am the individual requesting access to my personal data. |                          |                          |                                                          |
| Signature                                                                                                                            |                          |                          |                                                          |
| Date                                                                                                                                 |                          |                          |                                                          |
| <b>For office use only</b>                                                                                                           |                          |                          |                                                          |
| Fully approved                                                                                                                       | <input type="checkbox"/> | Partially approved       | <input type="checkbox"/> Denied <input type="checkbox"/> |